



Estate of Gene B. Lokken, The et al v. UnitedHealth Group, Inc. et al, Docket No. 0:23-cv-03514 (D. Minn. Nov 14, 2023), Court Docket

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U.S. District Court
U.S. District of Minnesota (DMN)
CIVIL DOCKET FOR CASE #: 0:23-cv-03514-JRT-SGE

Estate of Gene B. Lokken, The et al v. UnitedHealth Group, Inc.
et al

Date Filed:	Nov 14, 2023
Nature of suit:	110 Insurance
Demand:	\$5,000,000
Assigned to:	Judge John R. Tunheim
Cause:	28:1332 Diversity-Insurance Contract
Jurisdiction:	Diversity
Jury demand:	Plaintiff
Referred to:	Magistrate Judge Shannon G. Elkins

Parties and Attorneys

Plaintiff	Estate of Gene B. Lokken, The individually and on behalf of all others similarly situated	
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TERMINATED: 12/27/2023

Plaintiff

Estate of Dale Henry Tetzloff, The
individually and on behalf of all others similarly situated

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Plaintiff

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Plaintiff

Frank Chester Perry
TERMINATED: 11/14/2024

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Plaintiff

Estate of Jackie Martin, The

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	Carey Alexander (See above for address) TERMINATED: 05/15/2025 PRO HAC VICE	

Plaintiff	William Hull	
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Plaintiff

Carol Clemens

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Plaintiff

John J. Williams

as Trustee of the Miles and Carolyn Williams 1993 Family Trust

Representation

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Plaintiff	Estate of Frank Chester Perry TERMINATED: 11/14/2024	
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Plaintiff

Mary Marfisee
as personal representative of the Estate of Frank Chester Perry

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Defendant	naviHealth, Inc.	
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Defendant	Does 1-50
Representation	Samuel Audley (See above for address) LEAD ATTORNEY ATTORNEY TO BE NOTICED

Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Nov 14, 2023	COMPLAINT against Does, UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc. (filing fee \$ 402, receipt number BMNDC-10659203) filed by Estate of Gene B. Lokken, The, Estate of Dale Henry Tetzloff, The. Filer requests summons issued. (Attachments: # 1 Civil Cover Sheet) (Riebel, Karen) (Entered: 11/14/2023)
2	Nov 15, 2023	(Text-Only) CLERK'S NOTICE OF INITIAL CASE ASSIGNMENT. Case assigned to Judge Wilhelmina M. Wright per 3rd/4th Master list, referred to Magistrate Judge David T. Schultz. Please use case number 23-cv-3514 (WMW/DTS).Notice: All Nongovernmental Corporate Parties must file a Rule 7.1 Corporate Disclosure Statement. (MMP) (Entered: 11/15/2023)
3	Nov 15, 2023	Summons Issued as to UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc. (MMP) (Entered: 11/15/2023)
4	Nov 15, 2023	(Text-Only): Notice re: Non-Admitted AttorneyWe have received documents listing Glenn A. Danas, Ryan Clarkson, Zarrina Ozari as counsel of record. If he or she wishes to be listed as an attorney of record in this case, he or she must be admitted to the bar of the U.S. District Court of Minnesota in accordance with Local Rule 83.5 (a), (b) and (c) or temporarily admitted pro hac vice in accordance with Local Rule 83.5 (d) or (e).For more admissions information and forms, please see the Attorney Forms Section of the courts website at www.mnd.uscourts.gov/forms/all-forms. (MMP) (Entered: 11/15/2023)
5	Nov 15, 2023	SUMMONS Returned Executed by Estate of Gene B. Lokken, The, Estate of Dale Henry Tetzloff, The. naviHealth, Inc. served on 11/15/2023, answer due 12/6/2023. (Riebel, Karen) (Entered: 11/15/2023)
6	Nov 15, 2023	SUMMONS Returned Executed by Estate of Gene B. Lokken, The, Estate of Dale Henry Tetzloff, The. UnitedHealth Group, Inc. served on 11/15/2023, answer due 12/6/

Entry #	Filing Date	Description
		2023. (Riebel, Karen) (Entered: 11/15/2023)
7	Nov 15, 2023	SUMMONS Returned Executed by Estate of Gene B. Lokken, The, Estate of Dale Henry Tetzloff, The. UnitedHealthcare, Inc. served on 11/15/2023, answer due 12/6/2023. (Riebel, Karen) (Entered: 11/15/2023)
8	Nov 16, 2023	MOTION for Admission Pro Hac Vice for Attorney Glenn A. Danas. Filing fee \$ 100, receipt number AMNDC-10665299 filed by Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The. (Riebel, Karen) (Entered: 11/16/2023)
9	Nov 16, 2023	MOTION for Admission Pro Hac Vice for Attorney Ryan J. Clarkson. Filing fee \$ 100, receipt number AMNDC-10665300 filed by Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The. (Riebel, Karen) (Entered: 11/16/2023)
10	Nov 16, 2023	MOTION for Admission Pro Hac Vice for Attorney Zarrina Ozari. Filing fee \$ 100, receipt number AMNDC-10665303 filed by Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The. (Riebel, Karen) (Entered: 11/16/2023)
11	Nov 20, 2023	(Text-Only) ORDER granting 8 Motion for Admission Pro Hac Vice of Attorney Glenn Danas for Estate of Dale Henry Tetzloff, The, and Estate of Gene B. Lokken, The.; granting 9 Motion for Admission Pro Hac Vice of Attorney Ryan Clarkson for Estate of Dale Henry Tetzloff, The, and Estate of Gene B. Lokken, The.; granting 10 Motion for Admission Pro Hac Vice of Attorney Zarrina Ozari for Estate of Dale Henry Tetzloff, The, and Estate of Gene B. Lokken, The. Approved by Magistrate Judge David T. Schultz on 11/20/2023. (jam) (Entered: 11/20/2023)
12	Nov 22, 2023	(Text-Only) NOTICE - Judge Wilhelmina M. Wright's Practice Pointers are available on the United States District Court for the District of Minnesota's website. All parties are expected to be familiar with and adhere to these Practice Pointers, including Judge Wright's deviations from the Local Rules with respect to motion scheduling and briefing deadlines. (RMM) (Entered: 11/22/2023)
13	Dec 4, 2023	STIPULATION re 1 Complaint, to Extend Deadline for Defendants to Respond to the Complaint and the Briefing Schedule on Defendants' Anticipated Motion to Dismiss by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. Jointly Signed by UnitedHealth Group, Inc., United Healthcare, Inc., NaviHealth, Inc., The Estate of Gene B. Lokken, and The Estate of Dale Henry Tetzloff. (Grant, Michelle) (Entered: 12/04/2023)
14	Dec 4, 2023	PROPOSED ORDER TO JUDGE re 13 Stipulation,. (Grant, Michelle) (Entered: 12/04/2023)
15	Dec 5, 2023	MOTION for Admission Pro Hac Vice for Attorney Nicholas J. Pappas. Filing fee \$ 100, receipt number AMNDC-10698039 filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 12/05/2023)
16	Dec 6, 2023	ORDER on 13 Stipulation. Does answer due 2/5/2024; UnitedHealth Group, Inc. answer due 2/5/2024; UnitedHealthcare, Inc. answer due 2/5/2024; naviHealth, Inc. answer due 2/5/2024. Signed by Magistrate Judge David T. Schultz on 12/6/2023. (TJB) (Entered: 12/06/2023)
17	Dec 7, 2023	(Text-Only) ORDER granting 15 Motion for Admission Pro Hac Vice of Attorney Nicholas Pappas for UnitedHealth Group, Inc.,UnitedHealthcare, Inc., and naviHealth, Inc. Approved by Magistrate Judge David T. Schultz on 12/7/2023. (jam) (Entered: 12/07/2023)

Entry #	Filing Date	Description
18	Dec 27, 2023	NOTICE of Withdrawal as Attorney (Marttila, Kristen) (Entered: 12/27/2023)
19	Jan 24, 2024	(Text-Only) CLERK'S NOTICE OF REASSIGNMENT. Due to the retirement of Judge Wilhelmina M. Wright, this case is reassigned to Judge John R. Tunheim. Judge Wilhelmina M. Wright is no longer assigned to the case. NOTE: the new case number is 23-cv-3514 JRT/DTS. Please use this case number for all subsequent pleadings. (LJG) (Entered: 01/24/2024)
20	Feb 5, 2024	MOTION to Dismiss for Lack of Jurisdiction , MOTION to Dismiss/General filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 02/05/2024)
21	Feb 5, 2024	NOTICE OF HEARING ON MOTION 20 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss/General : Date and time to be determined. (Grant, Michelle) (Entered: 02/05/2024)
22	Feb 5, 2024	SEALED MEMORANDUM in Support re 20 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss/General filed by Defendants. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 02/05/2024)
23	Feb 5, 2024	Redacted Document for 22 Memorandum in Support of Defendants' Motion to Dismiss filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 02/05/2024)
24	Feb 5, 2024	Declaration of Michelle S. Grant in Support of 20 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss/General filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 Exhibit(s) A, # 2 Exhibit(s) B)(Grant, Michelle) (Entered: 02/05/2024)
25	Feb 5, 2024	SEALED EXHIBIT List of Sealed Exhibits re 24 Declaration in Support, filed by Defendants. (Attachments: # 1 Exhibit(s) C, # 2 Exhibit(s) D, # 3 Exhibit(s) E, # 4 Exhibit(s) F, # 5 Exhibit(s) G, # 6 Exhibit(s) H, # 7 Exhibit(s) I, # 8 Exhibit(s) J, # 9 Exhibit(s) K)(Grant, Michelle) (Entered: 02/05/2024)
26	Feb 5, 2024	STATEMENT INSTEAD OF REDACTED DOCUMENT: Entire Document Confidential for 25 Sealed Document(s) - 25 List of Sealed Exhibits, [25-1] Sealed Ex C, [25-2] Sealed Ex D, [25-3] Sealed Ex E, [25-4] Sealed Ex F, [25-5] Sealed Ex G, [25-6] Sealed Ex H, [25-7] Sealed Ex I, [25-8] Sealed Ex J, [25-9] Sealed Ex K filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/05/2024)
27	Feb 5, 2024	MEET and CONFER STATEMENT re 20 Motion to Dismiss/Lack of Jurisdiction, Motion to Dismiss/General filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/05/2024)
28	Feb 5, 2024	PROPOSED ORDER TO JUDGE re 20 MOTION to Dismiss for Lack of Jurisdiction MOTION to Dismiss/General filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/05/2024)
29	Feb 5, 2024	RULE 7.1 DISCLOSURE STATEMENT. Parent corporation, publicly held corporation owning 10 percent or more of its stock, or subsidiary reported for UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 02/05/2024)
30	Feb 7, 2024	(Text-Only) ORDER on 13 Stipulation re: 20 MOTION to Dismiss for Lack of

Entry #	Filing Date	Description
		Jurisdiction MOTION to Dismiss/General . Replies due by 5/20/2024. Responses due by 4/5/2024. Ordered by Judge John R. Tunheim on 2/7/2024.(HMA) (Entered: 02/07/2024)
31	Feb 23, 2024	STIPULATION to Amend Complaint by Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The. Jointly Signed by UnitedHealth Group, Inc., United Healthcare, Inc., and NaviHealth, Inc.. (Danas, Glenn) (Entered: 02/23/2024)
32	Feb 23, 2024	PROPOSED ORDER TO JUDGE re 31 Stipulation. (Danas, Glenn) (Entered: 02/23/2024)
33	Feb 28, 2024	ORDER on 31 Stipulation. Signed by Magistrate Judge David T. Schultz on 2/28/2024. (TJB) (Entered: 02/28/2024)
34	Apr 5, 2024	AMENDED COMPLAINT against Does, UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. filed by Estate of Gene B. Lokken, The, Glennette Kell, Frank Chester Perry, Estate of Jackie Martin, The, Darlene Buckner, William Hull, Carol Clemens, John J. Williams. No summons requested. (Riebel, Karen) (Entered: 04/05/2024)
35	Apr 8, 2024	MOTION for Admission Pro Hac Vice for Attorney James J. Pizzirusso. Filing fee \$ 100, receipt number BMNDC-10960679 filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Riebel, Karen) (Entered: 04/08/2024)
36	Apr 8, 2024	MOTION for Admission Pro Hac Vice for Attorney Steven M. Nathan. Filing fee \$ 100, receipt number AMNDC-10960704 filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Riebel, Karen) (Entered: 04/08/2024)
37	Apr 9, 2024	(Text-Only) ORDER granting 35 Motion for Admission Pro Hac Vice of Attorney James J. Pizzirusso for Darlene Buckner,Carol Clemens,Estate of Gene B. Lokken, The, Estate of Jackie Martin, The,William Hull,Glennette Kell,Frank Chester Perry, and John J. Williams.; granting 36 Motion for Admission Pro Hac Vice of Attorney Steven M. Nathan for Darlene Buckner,Carol Clemens,Estate of Gene B. Lokken, The,Estate of Jackie Martin, The,William Hull,Glennette Kell,Frank Chester Perry, and John J. Williams. Approved by Magistrate Judge David T. Schultz on 4/9/2024. (jam) (Entered: 04/09/2024)
38	Apr 17, 2024	STIPULATION re 34 Amended Complaint, by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. Jointly Signed by Estate of Gene B. Lokken, Glennette Kell, Darlene Buckner, Carol Clemens, Frank Chester Perry, The Estate of Jackie Martin, John J. Williams, as Trustee of the Miles and Carolyn Williams 1993 Family Trust, and William Hull. (Grant, Michelle) (Entered: 04/17/2024)
39	Apr 17, 2024	PROPOSED ORDER TO JUDGE re 38 Stipulation,. (Grant, Michelle) (Entered: 04/17/2024)
40	Apr 18, 2024	ORDER on 38 Stipulation. All Defendants answer due on or before 5/20/24. Signed by Magistrate Judge David T. Schultz on 4/18/2024. (TJB) (Entered: 04/18/2024)
41	May 20, 2024	MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Bjorklund, Shannon) (Entered: 05/20/2024)

Entry #	Filing Date	Description
42	May 20, 2024	NOTICE OF HEARING ON MOTION 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint : Date and time to be determined. (Bjorklund, Shannon) (Entered: 05/20/2024)
43	May 20, 2024	SEALED MEMORANDUM in Support re 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by Defendants. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Bjorklund, Shannon) (Entered: 05/20/2024)
44	May 20, 2024	Redacted Document for 43 Memorandum in Support of Motion to Dismiss Amended Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Bjorklund, Shannon) (Entered: 05/20/2024)
45	May 20, 2024	Declaration of Michelle Grant in Support of 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 Exhibit(s) 1-10)(Bjorklund, Shannon) (Entered: 05/20/2024)
46	May 20, 2024	SEALED EXHIBIT List re 45 Declaration in Support, filed by Defendants. (Attachments: # 1 Exhibit(s) 11, # 2 Exhibit(s) 12, # 3 Exhibit(s) 13, # 4 Exhibit(s) 14, # 5 Exhibit(s) 15, # 6 Exhibit(s) 16, # 7 Exhibit(s) 17, # 8 Exhibit(s) 18, # 9 Exhibit(s) 19, # 10 Exhibit(s) 20, # 11 Exhibit(s) 21, # 12 Exhibit(s) 22, # 13 Exhibit(s) 23, # 14 Exhibit(s) 24, # 15 Exhibit(s) 25, # 16 Exhibit(s) 26, # 17 Exhibit(s) 27, # 18 Exhibit(s) 28, # 19 Exhibit(s) 29, # 20 Exhibit(s) 30, # 21 Exhibit(s) 31, # 22 Exhibit(s) 32, # 23 Exhibit(s) 33, # 24 Exhibit(s) 34, # 25 Exhibit(s) 35, # 26 Exhibit(s) 36, # 27 Exhibit(s) 37, # 28 Exhibit(s) 38)(Bjorklund, Shannon) (Entered: 05/20/2024)
47	May 20, 2024	STATEMENT INSTEAD OF REDACTED DOCUMENT: Entire Document Confidential for 46 Sealed Document(s) - [45-1] Sealed Ex 11, [45-2] Sealed Ex 12, [45-3] Sealed Ex 13, [45-4] Sealed Ex 14, [45-5] Sealed Ex 15, [45-6] Sealed Ex 16, [45-7] Sealed Ex 17, [45-8] Sealed Ex 18, [45-9] Sealed Ex 19, [45-10] Sealed Ex 20, [45-11] Sealed Ex 21, [45-12] Sealed Ex 22, [45-13] Sealed Ex 23, [45-14] Sealed Ex 24, [45-15] Sealed Ex 25, [45-16] Sealed Ex 26, [45-17] Sealed Ex 27, [45-18] Sealed Ex 28, [45-19] Sealed Ex 29, [45-20] Sealed Ex 30, [45-21] Sealed Ex 31, [45-22] Sealed Ex 32, [45-23] Sealed Ex 33, [45-24] Sealed Ex 34, [45-25] Sealed Ex 35, [45-26] Sealed Ex 36, [45-27] Sealed Ex 37, [45-28] Sealed Ex 38 filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 05/20/2024)
48	May 20, 2024	MEET and CONFER STATEMENT re 41 Motion to Dismiss/Lack of Jurisdiction filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 05/20/2024)
49	May 20, 2024	PROPOSED ORDER TO JUDGE re 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 05/20/2024)
50	May 22, 2024	MOTION for Admission Pro Hac Vice for Attorney Nicholas U. Murphy. Filing fee \$ 100, receipt number AMNDC-11066795 filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Riebel, Karen) (Entered: 05/22/2024)
51	May 23, 2024	(Text-Only) ORDER granting 50 Motion for Admission Pro Hac Vice of Attorney Nicholas Murphy for Darlene Buckner,Carol Clemens,Estate of Gene B. Lokken, The,

Entry #	Filing Date	Description
		Estate of Jackie Martin, The,William Hull,Glennette Kell, Frank Chester Perry,and John J. Williams. Approved by Magistrate Judge David T. Schultz on 5/23/2024. (jam) (Entered: 05/23/2024)
52	May 28, 2024	ORDER/NOTICE FOR PRETRIAL SCHEDULING CONFERENCE: Parties are directed to Meet and Confer by 6/18/2024. Rule 26 Meeting Report due by 6/18/2024. Confidential letters due 6/18/24. Pretrial Conference set for 6/25/2024 at 10:30 AM in Courtroom 9E (MPLS) before Magistrate Judge David T. Schultz. Signed by Magistrate Judge David T. Schultz on 5/28/2024. (Attachments: # 1 Consent Form) (TJB) (Entered: 05/28/2024)
53	May 30, 2024	STIPULATION for Extension of Briefing Deadlines by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. Jointly Signed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., and NaviHealth, Inc.. (Asp, David) (Entered: 05/30/2024)
54	May 30, 2024	PROPOSED ORDER TO JUDGE re 53 Stipulation,. (Asp, David) (Entered: 05/30/2024)
55	May 31, 2024	(Text-Only) ORDER in Response to Stipulation (Docket No. 53): The briefing schedule is as follows: Plaintiffs shall file any responsive memorandum to Defendants' Motion to Dismiss (Docket No. 41) on or before June 24, 2024; and Defendants shall file any reply memorandum in support of their Motion to Dismiss or before July 15, 2024. Ordered by Judge John R Tunheim on 5/31/2024.(CBC) (Entered: 05/31/2024)
56	Jun 18, 2024	REPORT of Rule 26(f) Planning Meeting. Filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. Jointly Signed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., and naviHealth, Inc..(Asp, David) (Entered: 06/18/2024)
57	Jun 24, 2024	MEMORANDUM in Opposition re 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Waller, Derek) (Entered: 06/24/2024)
58	Jun 25, 2024	NOTICE of Appearance by Emma Ritter Gordon on behalf of Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Gordon, Emma) (Entered: 06/25/2024)
59	Jun 25, 2024	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge David T. Schultz on 6/25/2024: Rule 16 Pretrial Conference.No Digital RecordingMinneapolis Courthouse, Courtroom Telephone ConferenceTime: 10:30a / 10:50aTotal Time: 20 min.APPEARANCES:For Plaintiff(s): David Asp; Nicholas Murphy; Ryan Clakson; Zarrina OzariFor Defendant(s): Nicholas Pappas; Nicole Engisch; Shannon BjorklundPROCEEDINGS: Discussion of Pretrial Deadlines. Pretrial Scheduling Order to be issued.(TJB) (Entered: 06/25/2024)
60	Jun 25, 2024	SCHEDULING ORDER: Amended Pleadings due by 1/15/2025. Fact Discovery due by 12/30/2025. Motions (non-disp) due 1/13/2026. Motions (disp) due by 6/30/2026. Ready for trial due by 9/30/2026. Signed by Magistrate Judge David T. Schultz on 6/25/2024. (TJB) (Entered: 06/25/2024)

Entry #	Filing Date	Description
61	Jun 25, 2024	ORDER REGARDING LR 5.6. Signed by Magistrate Judge David T. Schultz on 6/25/2024. (Attachments: # 1 ex 1, # 2 ex 2) (TJB) (Entered: 06/25/2024)
62	Jun 27, 2024	MOTION for Admission Pro Hac Vice for Attorney Michael Boelter. Filing fee \$ 100, receipt number AMNDC-11159290 filed by Darlene Buckner, Carol Clemens, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Asp, David) (Entered: 06/27/2024)
63	Jun 27, 2024	ORDER OF RECUSAL. Magistrate Judge David T. Schultz recused. Case reassigned to Magistrate Judge Dulce J. Foster for all further proceedings. NOTE: the new case number is 23-cv-3514 (JRT/DJF). Please use this case number for all subsequent pleadings Signed by Magistrate Judge David T. Schultz on 6/27/2024.(BTX) (Entered: 06/28/2024)
64	Jul 2, 2024	(Text-Only) ORDER granting 62 Motion for Admission Pro Hac Vice of Attorney Michael August Boelter for Darlene Buckner, Carol Clemens, The Estate of Gene B. Lokken, The Estate of Jackie Martin, William Hull,Glennette Kell, Frank Chester Perry and John J. Williams. Approved by Magistrate Judge Dulce J. Foster on 7/2/2024. (KMO) (Entered: 07/02/2024)
65	Jul 15, 2024	REPLY re 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 07/15/2024)
66	Aug 5, 2024	Joint Motion Regarding Continued Sealing 43 Memorandum in Support of Motion, 25 Exhibit, 46 Exhibit,, 22 Memorandum in Support of Motion filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 08/05/2024)
67	Aug 6, 2024	ORDER: (1) The parties' Joint Motion Regarding Continued Sealing (ECF No. 66) is GRANTED; (2) The Clerk of Court is directed to keep ECF Nos. 22 , [25-1] to [25-9], 43 , and [46-1] to [46-28] under seal. (Written Opinion) Signed by Magistrate Judge Dulce J. Foster on 8/6/2024. (MEH) (Entered: 08/06/2024)
68	Aug 8, 2024	(Text-Only) NOTICE: Motion Hearing set for 8/29/2024 at 02:00 PM in Courtroom 14E (MPLS) before Judge John R. Tunheim. (KKM) (Entered: 08/08/2024)
69	Aug 8, 2024	MOTION to Stay Discovery filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 08/08/2024)
70	Aug 8, 2024	NOTICE OF HEARING ON MOTION 69 MOTION to Stay Discovery : Motion Hearing set for 8/22/2024 at 03:30 PM in Video Conference (no courtroom) before Magistrate Judge Dulce J. Foster. (Grant, Michelle) (Entered: 08/08/2024)
71	Aug 8, 2024	MEMORANDUM in Support re 69 MOTION to Stay Discovery filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 08/08/2024)
72	Aug 8, 2024	MEET and CONFER STATEMENT re 69 Motion to Stay filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 08/08/2024)
73	Aug 8, 2024	PROPOSED ORDER TO JUDGE re 69 MOTION to Stay Discovery filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 08/08/2024)
74	Aug 9, 2024	(Text-Only) ORDER/NOTICE: In view of the reassignment of this matter to Magistrate

Entry #	Filing Date	Description
		Judge Foster, the Settlement Conference set for May 11, 2026 at 9:30 AM is CANCELED and will be rescheduled as appropriate. Counsel are directed to meet and confer regarding settlement on or before October 31, 2024. Following the meet-and-confer, each party must submit a 1-2 page confidential letter describing the settlement discussions that have taken place, whether and when the party believes a settlement conference or private mediation might be most productive, and what additional discovery or motion practice might be needed to maximize the chances of reaching a settlement in such a conference. Each party's confidential letter must be submitted by email to Judge Foster at foster_chambers@mnd.uscourts.gov by November 7, 2024. Ordered by Magistrate Judge Dulce J. Foster on 8/9/2024.(LNP) (Entered: 08/09/2024)
75	Aug 15, 2024	MEMORANDUM in Opposition re 69 MOTION to Stay Discovery filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Frank Chester Perry, John J. Williams. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Danas, Glenn) (Entered: 08/15/2024)
76	Aug 22, 2024	MINUTE ENTRY for proceedings held before Magistrate Judge Dulce J. Foster on 8/22/2024: Oral Arguments Motion Hearing.Court Reporter: Nancy MeyerDigital Recording Courtroom Video ConferenceTime: 3:31 P.M.4:08 P.M.Total Time: 37 minutesAPPEARANCES:For Plaintiff(s): Glenn Danas; David W. Asp; Derek C. Waller; Michael August BoelterFor Defendant(s): Nicolas Pappas; Nicole A. Engisch; Shannon L. BjorklundPROCEEDINGS: After oral arguments, the Court GRANTED Defendants' Motion to Stay Discovery 69 for the reasons stated on the record.(MEH) Modified date on 8/23/2024 (MKB). (Entered: 08/23/2024)
77	Aug 23, 2024	TRANSCRIPT REQUEST for an Expedited 14-Day Transcript for a COPY OF TRANSCRIPT 76 Order on Motion to Stay,,, Motion Hearing,,, to Court Reporter Nancy Meyer. (Pappas, Nicholas) (Entered: 08/23/2024)
78	Aug 29, 2024	(Text-Only) MINUTE ENTRY for proceedings held before Judge John R. Tunheim on 8/29/2024: Oral Arguments Motion Hearing.Court Reporter: Lori SimpsonMinneapolis Courthouse, Courtroom 14ETime commenced: 2:05 PMTime concluded: 2:50 PMTotal Time: 45 minutesAPPEARANCES:For Plaintiff(s): David Asp, Michael Boelter, Glenn Danas, Emma Ritter Gordon, Derek WallerFor Defendant(s): Nicholas Pappas, Michelle Grant, Nicole Engisch, Shannon BjorklundPROCEEDINGS:Hearing on: 41 MOTION to Dismiss for Lack of Jurisdiction Plaintiff's First Amended Class Action Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. The motion was argued and taken under advisement. Order to follow.(HMA) (Entered: 09/04/2024)
79	Sep 5, 2024	TRANSCRIPT REQUEST for a 30-Day Transcript of 78 Motion Hearing,,, to Court Reporter Lori Simpson. (Grant, Michelle) (Entered: 09/05/2024)
80	Sep 6, 2024	TRANSCRIPT of Motion Hearing held on 8/22/2024 before Magistrate Judge Dulce J. Foster. (1-28 pages). Court Reporter: Nancy J. Meyer. For a copy of the transcript, please file a Transcript Request under Other Filings/Other Documents.Parties have 21 days to file a Statement of Redaction. In accordance with Judicial Conference policy and Local Rule 80.1, the transcript may be released and made remotely electronically available to the public in 90 days. For further information on redaction procedures, please review Local Rule 5.5 and Case Information >Transcripts, Court Reporters and Digital Audio Recordings. Statement of Redaction due 9/27/2024. Redacted Transcript Deadline set for 10/7/2024. Release of Transcript Restriction set for 12/5/2024. (njm)

Entry #	Filing Date	Description
		(Entered: 09/06/2024)
81	Sep 6, 2024	TRANSCRIPT REQUEST for a 30-Day Transcript of 78 Motion Hearing,,, to Court Reporter Lori Simpson. (Asp, David) (Entered: 09/06/2024)
82	Sep 30, 2024	(Text-Only) CLERK'S NOTICE OF REASSIGNMENT OF MAGISTRATE JUDGE. Due to the appointment of Magistrate Judge Shannon G. Elkins, this case is reassigned to her. Magistrate Judge Dulce J. Foster is no longer assigned to the case. NOTE: the new case number is 23-cv-3514 JRT/SGE. Please use this case number for all subsequent filings. Scheduling orders entered before this case was reassigned will remain in effect unless otherwise ordered by the Court. If a previously scheduled proceeding conflicts with an event already on Magistrate Judge Elkins' schedule, the parties will be contacted, and a new date will be scheduled. Magistrate Judge Elkins' practice pointers are available on the Court's website. Please contact Magistrate Judge Elkins' chambers, at 651-848-1210, for scheduling or other matters. (kt) (Entered: 09/30/2024)
83	Oct 3, 2024	DOCUMENT FILED IN ERROR. CORRECTED TRANSCRIPT FILED, SEE DOCUMENT NUMBER 84 . TRANSCRIPT of Motions Hearing held on 8/29/2024 before Judge John R. Tunheim. (33 pages). Court Reporter: Lori Simpson. For a copy of the transcript, please file a Transcript Request under Other Filings/Other Documents.Parties have 21 days to file a Statement of Redaction. In accordance with Judicial Conference policy and Local Rule 80.1, the transcript may be released and made remotely electronically available to the public in 90 days. For further information on redaction procedures, please review Local Rule 5.5 and Case Information >Transcripts, Court Reporters and Digital Audio Recordings. Statement of Redaction due 10/24/2024. Redacted Transcript Deadline set for 11/4/2024. Release of Transcript Restriction set for 1/2/2025. (LAS) Modified text on 10/7/2024 (MKB). (Entered: 10/03/2024)
84	Oct 5, 2024	CORRECTED Version of previously filed TRANSCRIPT 83 Motions Hearing held on 8/29/2024 before Judge John R. Tunheim. (33 pages). Court Reporter: Lori Simpson. For a copy of the transcript, please file a Transcript Request under Other Filings/Other Documents.Parties have 21 days to file a Statement of Redaction. In accordance with Judicial Conference policy and Local Rule 80.1, the transcript may be released and made remotely electronically available to the public in 90 days. For further information on redaction procedures, please review Local Rule 5.5 and Case Information>Transcripts, Court Reporters and Digital Audio Recordings. Statement of Redaction due 10/28/2024. Redacted Transcript Deadline set for 11/5/2024. Release of Transcript Restriction set for 1/3/2025. (LAS) (Entered: 10/05/2024)
85	Nov 13, 2024	MOTION to Substitute Party (Unopposed) filed by Frank Chester Perry. (Waller, Derek) (Entered: 11/13/2024)
86	Nov 13, 2024	MEMORANDUM in Support re 85 MOTION to Substitute Party (Unopposed) filed by Frank Chester Perry. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Waller, Derek) (Entered: 11/13/2024)
87	Nov 13, 2024	Declaration of Mary Marfisee in Support of 85 MOTION to Substitute Party (Unopposed) filed by Frank Chester Perry. (Attachments: # 1 Exhibit(s) 1)(Waller, Derek) (Entered: 11/13/2024)
88	Nov 13, 2024	MEET and CONFER STATEMENT re 85 Motion to Substitute Party filed by Frank Chester Perry.(Waller, Derek) (Entered: 11/13/2024)

Entry #	Filing Date	Description
89	Nov 13, 2024	PROPOSED ORDER TO JUDGE re 85 MOTION to Substitute Party (Unopposed) filed by Frank Chester Perry.(Waller, Derek) (Entered: 11/13/2024)
90	Nov 14, 2024	ORDER granting 85 Motion to Substitute Party. Estate of Frank Chester Perry added. Frank Chester Perry terminated. Signed by Magistrate Judge Shannon G. Elkins on 11/14/2024. (CMP) (Entered: 11/14/2024)
91	Feb 13, 2025	MEMORANDUM OPINION AND ORDER Granting in Part and Denying in Part 41 Defendants' Motion to Dismiss as follows:1. Count 1 (Breach of Contract) and Count 2 (Breach of the Implied Covenant of Good Faith and Fair Dealing) may proceed; and 2. Count 3 (Unjust Enrichment), Count 4 (Insurance Bad Faith), Count 5 (Negligence Per Se Oregon), Count 6 (Unfair and Deceptive Insurance Practices Minnesota), and Count 7 (Unfair Competition Law California) are dismissed with prejudice. (Written Opinion) Signed by Judge John R. Tunheim on 2/13/2025. (KKM) (Entered: 02/13/2025)
92	Feb 25, 2025	STIPULATION re 34 Amended Complaint, To Extend Deadline for Defendants to Answer the Amended Complaint by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. Jointly Signed by The Estate of Gene B. Lokken, Glennette Kell, Darlene Buckner, Carol Clemens, The Estate of Frank Chester Perry, The Estate of Jackie Martin, John J. Williamsas Trustee of the Miles and Carolyn Williams 1993 Family Trust, William Hull, UNITEDHEALTH GROUP, INC., and UNITED HEALTHCARE, INC. and NAVIHEALTH, INC.. (Grant, Michelle) (Entered: 02/25/2025)
93	Feb 25, 2025	PROPOSED ORDER TO JUDGE re 92 Stipulation,,. (Grant, Michelle) (Entered: 02/25/2025)
94	Feb 26, 2025	ORDER on 92 Stipulation. Defendants shall Answer Plaintiffs' Amended Complaint on or before March 27, 2025. Signed by Magistrate Judge Shannon G. Elkins on 2/26/2025. (HAM) (Entered: 02/26/2025)
95	Mar 7, 2025	LETTER TO DISTRICT JUDGE by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc. . (Grant, Michelle) (Entered: 03/07/2025)
96	Mar 13, 2025	LETTER TO DISTRICT JUDGE by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams . (Danas, Glenn) (Entered: 03/13/2025)
97	Mar 19, 2025	MOTION for Admission Pro Hac Vice for Attorney Carey Alexander. Filing fee \$ 150, receipt number AMNDC-11754916 filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Asp, David) (Entered: 03/19/2025)
98	Mar 19, 2025	(Text-Only) ORDER granting 97 Motion for Admission Pro Hac Vice of Attorney Carey Alexander for Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee and John J. Williams. Approved by Magistrate Judge Shannon G. Elkins on 3/19/2025. (MS) (Entered: 03/19/2025)
99	Mar 27, 2025	ANSWER to 34 Amended Complaint filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Bjorklund, Shannon) (Entered: 03/27/2025)
100	Mar 27, 2025	NOTICE of Change of Address by James J. Pizzirusso (Pizzirusso, James) (Entered: 03/27/2025)

Entry #	Filing Date	Description
		03/27/2025)
101	Mar 27, 2025	NOTICE of Change of Address by Nicholas Murphy (Murphy, Nicholas) (Entered: 03/27/2025)
102	Apr 17, 2025	AMENDED ANSWER to 34 Amended Complaint, filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Bjorklund, Shannon) (Entered: 04/17/2025)
103	May 14, 2025	NOTICE of Withdrawal as Attorney (Alexander, Carey) (Entered: 05/14/2025)
104	Jun 2, 2025	ORDER in Response to 95 Letter to District Judge. Defendants' Request to File a Motion for Reconsideration is Denied. Signed by Judge John R. Tunheim on 6/2/2025. (KKM) (Entered: 06/02/2025)
105	Aug 7, 2025	(Text-Only) ORDER/NOTICE TO ATTORNEY. On or shortly before August 15, 2025, counsel for the parties shall submit CONFIDENTIAL letters to the Court not to exceed 3 pages setting forth with reasonable specificity the status of this case; the last settlement positions of the parties; the relative strengths and weaknesses of each party's position; and whether a settlement conference with a private mediator or the Court would be productive at this time. Ordered by Magistrate Judge Shannon G. Elkins on 8/7/2025. (CMP) (Entered: 08/07/2025)
106	Aug 19, 2025	STIPULATION for Protective Order by UnitedHealth Group, Inc., UnitedHealthcare, Inc.. Jointly Signed by Plaintiffs. (Bjorklund, Shannon) (Entered: 08/19/2025)
107	Aug 19, 2025	PROPOSED ORDER TO JUDGE re 106 Stipulation. (Bjorklund, Shannon) (Entered: 08/19/2025)
108	Aug 21, 2025	PROTECTIVE ORDER. Signed by Magistrate Judge Shannon G. Elkins on 8/21/2025. (CMP) (Entered: 08/21/2025)
109	Aug 21, 2025	MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Asp, David) (Entered: 08/21/2025)
110	Aug 21, 2025	NOTICE OF HEARING ON MOTION 109 MOTION to Compel Discovery Responses and Production of Documents : Motion Hearing set for 9/4/2025 at 10:00 AM in Courtroom 9E (MPLS) before Magistrate Judge Shannon G. Elkins. (Asp, David) (Entered: 08/21/2025)
111	Aug 21, 2025	MEMORANDUM in Support re 109 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Asp, David) (Entered: 08/21/2025)
112	Aug 21, 2025	Declaration of Derek C. Waller in Support of 109 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Attachments: # 1 Exhibit(s) A, # 2 Exhibit(s) B, # 3 Exhibit(s) C, # 4 Exhibit(s) D, # 5 Exhibit(s) E, # 6 Exhibit(s) F, # 7 Exhibit(s) G, # 8 Exhibit(s) H, # 9 Exhibit(s) I, # 10 Exhibit(s) J)(Asp, David) (Entered: 08/21/2025)
113	Aug 21, 2025	MEET and CONFER STATEMENT re 109 Motion to Compel, filed by Darlene Buckner,

Entry #	Filing Date	Description
		Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Asp, David) (Entered: 08/21/2025)
114	Aug 21, 2025	PROPOSED ORDER TO JUDGE re 109 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Asp, David) (Entered: 08/21/2025)
115	Aug 21, 2025	MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 08/21/2025)
116	Aug 21, 2025	NOTICE OF HEARING ON MOTION 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, : Motion Hearing set for 9/4/2025 at 10:00 AM in Courtroom 9E (MPLS) before Magistrate Judge Shannon G. Elkins. (Grant, Michelle) (Entered: 08/21/2025)
117	Aug 21, 2025	MEMORANDUM in Support re 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 08/21/2025)
118	Aug 21, 2025	Declaration of Michelle S. Grant in Support of 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 Exhibit(s) A)(Grant, Michelle) (Entered: 08/21/2025)
119	Aug 21, 2025	MEET and CONFER STATEMENT re 115 Motion to Alter/Amend/Correct Other Orders filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 08/21/2025)
120	Aug 21, 2025	PROPOSED ORDER TO JUDGE re 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 08/21/2025)
121	Aug 28, 2025	MEMORANDUM in Opposition re 109 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 08/28/2025)
122	Aug 28, 2025	DECLARATION of Michelle S. Grant in Opposition to 109 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 Exhibit(s) A)(Grant, Michelle) (Entered: 08/28/2025)
123	Aug 28, 2025	MEMORANDUM in Opposition re 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Asp, David) (Entered: 08/28/2025)
124	Aug 28, 2025	DECLARATION of Monica Finocchiaro in Opposition to 115 MOTION to Alter/Amend/Correct Other Orders 60 Scheduling Order, filed by Darlene Buckner, Carol Clemens,

Entry #	Filing Date	Description
		Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Asp, David) (Entered: 08/28/2025)
125	Sep 4, 2025	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 9/4/2025: Oral Arguments Motion Hearing.Court Reporter: Lori SimpsonMinneapolis Courthouse, Courtroom 9ETime Start: 10:00 a.m.Time End: 11:05 a.m.Total Time: 1:05APPEARANCES:For Plaintiffs: David Asp; Emma Gordon; Derek WallerFor Defendants: Nicholas Pappas; Michelle GrantPROCEEDINGS:Hearing on: Plaintiffs' Motion to Compel 109 and Defendants' Motion to Alter/Amend/Correct Other Orders 115 . The motions were moved and argued. Based on the files, records, and proceedings herein, and for the reasons stated on the record, the Court DENIED Defendant's Motion to Amend/Alter/Correct 115 with a written order to follow. The Court also DENIED Plaintiffs' Motion to Compel 109 as premature. The Court ordered the parties to meet and confer, and to provide the Court with a new Rule 26(f) report no later than Friday, September 12, 2025. The Court will schedule a Rule 16 conference thereafter. Written order to be issued. Ordered by Magistrate Judge Shannon G. Elkins.(CMP) (Entered: 09/04/2025)
126	Sep 4, 2025	TRANSCRIPT REQUEST for an Expedited 14-Day Transcript of 125 Order on Motion to Compel,,,,, Order on Motion to Alter/Amend/Correct Other Orders,,,,, Motion Hearing,,,,, to Court Reporter Lori Simpson. (Asp, David) (Entered: 09/04/2025)
127	Sep 4, 2025	TRANSCRIPT REQUEST for an Expedited Daily Transcript by 8am following day of 125 Order on Motion to Compel,,,,, Order on Motion to Alter/Amend/Correct Other Orders,,,,, Motion Hearing,,,,, to Court Reporter Lori Simpson. (Grant, Michelle) (Entered: 09/04/2025)
128	Sep 4, 2025	CHANGE for 127 Transcript Request: Delivery method changed to 3-day delivery. (LAS) (Entered: 09/04/2025)
129	Sep 8, 2025	TRANSCRIPT of Motions Hearing held on 9/4/2025 before Magistrate Judge Shannon G. Elkins. (51 pages). Court Reporter: Lori Simpson. For a copy of the transcript, please file a Transcript Request under Other Filings/Other Documents.Parties have 21 days to file a Statement of Redaction. In accordance with Judicial Conference policy and Local Rule 80.1, the transcript may be released and made remotely electronically available to the public in 90 days. For further information on redaction procedures, please review Local Rule 5.5 and Case Information >Transcripts, Court Reporters and Digital Audio Recordings. Statement of Redaction due 9/29/2025. Redacted Transcript Deadline set for 10/9/2025. Release of Transcript Restriction set for 12/8/2025. (LAS) (Entered: 09/08/2025)
130	Sep 8, 2025	MEMORANDUM AND OPINION. Written order denying Motion to Amend the Pretrial Scheduling Order 115 (Written Opinion). Signed by Magistrate Judge Shannon G. Elkins on 9/8/2025. (CMP) (Entered: 09/08/2025)
131	Sep 12, 2025	REPORT of Rule 26(f) Planning Meeting. Filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. Jointly Signed by The Estate of Gene B. Lokken, Glennette Kell, Darlene Buckner, Carol Clemens, The Estate of Frank Chester Perry, The Estate of Jackie Martin, John J. Williams, and William Hull.(Grant, Michelle) (Entered: 09/12/2025)
132	Sep 22, 2025	(Text-Only) ORDER/NOTICE OF SCHEDULING: After reviewing the parties' 26(f) Report, the Court will set a Pretrial Conference for 10/1/2025 at 01:00 PM via Zoom

Entry #	Filing Date	Description
		Audio-only Conference (no courtroom) before Magistrate Judge Shannon G. Elkins. Ordered by Magistrate Judge Shannon G. Elkins on 9/22/2025. (HAM) (Entered: 09/22/2025)
133	Oct 1, 2025	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 10/1/2025: Rule 16 Pretrial Conference.No Digital RecordingMinneapolis Courthouse, Courtroom Telephone ConferenceTime: 1:05 - 1:30 p.m.Total Time: 25 minutesAPPEARANCES:For Plaintiff(s): David Asp; Emma Gordon; Michael August Boelter; Nicholas MurphyFor Defendant(s): Michelle Grant; Nicholas PappasPROCEEDINGS: Discussion of Pretrial Deadlines. Pretrial Scheduling Order to be issued.(HAM) (Entered: 10/03/2025)
134	Oct 3, 2025	AMENDED PRETRIAL SCHEDULING ORDER: Fact Discovery due by 12/11/2026. Expert Discovery due by 4/16/2027. Motions (disp) due by 4/30/2027. Ready for trial due by 9/6/2027. Status Conference set for 1/30/2026 at 02:00 PM via Zoom Audio-only Conference (no courtroom) before Magistrate Judge Shannon G. Elkins. Status Conference set for 4/30/2026 at 02:00 PM via Zoom Audio-only Conference (no courtroom) before Magistrate Judge Shannon G. Elkins. Signed by Magistrate Judge Shannon G. Elkins on 10/3/2025. (HAM) (Entered: 10/03/2025)
135	Oct 3, 2025	STIPULATION Re Production of ESI Information and Paper Documents by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. Jointly Signed by THE ESTATE OF GENE B. LOKKEN, GLENNETTE KELL, DARLENE BUCKNER, CAROL CLEMENS, THE ESTATE OF FRANK CHESTER PERRY, THE ESTATE OF JACKIE MARTIN, JOHN J. WILLIAMS, AS TRUSTEE OF THE MILES AND CAROLYN WILLIAMS 1993 FAMILY TRUST, and WILLIAM HULL. (Grant, Michelle) (Entered: 10/03/2025)
136	Oct 3, 2025	PROPOSED ORDER TO JUDGE re 135 Stipulation,. (Grant, Michelle) (Entered: 10/03/2025)
137	Oct 27, 2025	ORDER on 135 Stipulation Re Production of ESI Information and Paper Documents. Signed by Magistrate Judge Shannon G. Elkins on 10/27/2025. (CMP) (Entered: 10/27/2025)
138	Nov 7, 2025	Joint MOTION to Alter/Amend/Correct Other Orders 134 Scheduling Order,, filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Waller, Derek) (Entered: 11/07/2025)
139	Nov 7, 2025	PROPOSED ORDER TO JUDGE re 138 Joint MOTION to Alter/Amend/Correct Other Orders 134 Scheduling Order,, filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Waller, Derek) (Entered: 11/07/2025)
140	Nov 12, 2025	ORDER granting 138 Motion to Alter/Amend/Correct Other Orders. Signed by Magistrate Judge Shannon G. Elkins on 11/12/2025. (HAM) (Entered: 11/12/2025)
141	Jan 8, 2026	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 1/8/2026: Status Conference.No Digital RecordingMinneapolis Courthouse, Courtroom Telephone ConferenceTime Begin: 10:30Time End: 10:39Total Time: 9 minutesAPPEARANCES:For Plaintiffs: David Asp; Emma Ritter Gordon; Nicholas Murphy; Glenn Danas; Michael BoelterFor Defendants: Michelle

Entry #	Filing Date	Description
		Grant; Nicholas Pappas; Josh OiePROCEEDINGS: Discussion regarding discovery issues. The Court encouraged the parties to meet and confer as to each issue the Plaintiff will move to compel to see if there is a way to resolve the matter. No separate order will be issued.(CMP) (Entered: 01/08/2026)
142	Jan 16, 2026	NOTICE of Appearance by Simeon Morbey on behalf of Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Morbey, Simeon) (Entered: 01/16/2026)
143	Jan 28, 2026	MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Morbey, Simeon) (Entered: 01/28/2026)
144	Jan 28, 2026	NOTICE OF HEARING ON MOTION 143 MOTION to Compel Discovery Responses and Production of Documents : Motion Hearing set for 2/11/2026 at 02:00 PM in Courtroom 9E (MPLS) before Magistrate Judge Shannon G. Elkins. (Morbey, Simeon) (Entered: 01/28/2026)
145	Jan 28, 2026	MEMORANDUM in Support re 143 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Attachments: # 1 LR7.1/ LR72.2 Word Count Compliance Certificate)(Morbey, Simeon) (Entered: 01/28/2026)
146	Jan 28, 2026	Declaration of Michael A. Boelter in Support of 143 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams. (Attachments: # 1 Exhibit(s) A, # 2 Exhibit(s) B, # 3 Exhibit(s) C, # 4 Exhibit(s) D, # 5 Exhibit(s) E, # 6 Exhibit(s) F, # 7 Exhibit(s) G, # 8 Exhibit(s) H, # 9 Exhibit(s) I, # 10 Exhibit(s) J, # 11 Exhibit(s) K, # 12 Exhibit(s) L, # 13 Exhibit(s) M, # 14 Exhibit(s) N, # 15 Exhibit(s) O, # 16 Exhibit(s) P, # 17 Exhibit(s) Q)(Morbey, Simeon) (Entered: 01/28/2026)
147	Jan 28, 2026	MEET and CONFER STATEMENT re 143 Motion to Compel, filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Morbey, Simeon) (Entered: 01/28/2026)
148	Jan 28, 2026	PROPOSED ORDER TO JUDGE re 143 MOTION to Compel Discovery Responses and Production of Documents filed by Darlene Buckner, Carol Clemens, Estate of Dale Henry Tetzloff, The, Estate of Gene B. Lokken, The, Estate of Jackie Martin, The, William Hull, Glennette Kell, Mary Marfisee, John J. Williams.(Morbey, Simeon) (Entered: 01/28/2026)
149	Jan 30, 2026	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 1/30/2026: Status Conference.No Digital RecordingMinneapolis Courthouse, Courtroom Telephone ConferenceTime Start: 2:00 p.m.Time End: 2:06 p.m.Total Time: 6 minutesAPPEARANCES:For Plaintiff(s): David Asp; Derek Waller; Glenn Danas; Michael BoelterFor Defendant(s): Michelle Grant; Nicholas Pappas; Nicole Engisch; Shannon BjorklundPROCEEDINGS: Discussion regarding case status. (CMP) (Entered: 01/30/2026)

Entry #	Filing Date	Description
150	Feb 4, 2026	MEMORANDUM in Opposition re 143 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Grant, Michelle) (Entered: 02/04/2026)
151	Feb 4, 2026	DECLARATION of Dr. Andrea Vogler in Opposition to 143 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/04/2026)
152	Feb 4, 2026	DECLARATION of Allysia Druga in Opposition to 143 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/04/2026)
153	Feb 4, 2026	DECLARATION of Julie Karger in Opposition to 143 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/04/2026)
154	Feb 4, 2026	DECLARATION of Michelle S. Grant in Opposition to 143 MOTION to Compel Discovery Responses and Production of Documents filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 Exhibit(s) A - Evidence of Coverage 2024)(Grant, Michelle) (Entered: 02/04/2026)
155	Feb 4, 2026	SEALED EXHIBIT B re 154 Declaration in Opposition, filed by UNITEDHEALTH GROUP INCORPORATED, UNITED HEALTHCARE, INC., NAVIHEALTH, INC..(Grant, Michelle) (Entered: 02/04/2026)
156	Feb 4, 2026	STATEMENT INSTEAD OF REDACTED DOCUMENT: Entire Document Confidential for 155 Sealed Document(s) - 155 SEALED Ex. B to Decl of M. Grant in Opposition to Plaintiff's Motion to Compel filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Grant, Michelle) (Entered: 02/04/2026)
157	Feb 11, 2026	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 2/11/2026: Oral Arguments Motion Hearing.Court Reporter: Renee RoggeMinneapolis Courthouse, Courtroom 9ETime: 2:03 p.m. - 3:47 p.m.Total Time: 1 hour 44 minutesAPPEARANCES:For Plaintiff(s): Michael Boelter; David Asp; Emma GordonFor Defendant(s): Michelle Grant; Nicholas PappasPROCEEDINGS:Hearing on: 143 MOTION to Compel Discovery Responses and Production of Documents filed by Carol Clemens, Estate of Dale Henry Tetzloff, The, Mary Marfisee, John J. Williams, Darlene Buckner, Estate of Gene B. Lokken, The, William Hull, Glennette Kell, Estate of Jackie Martin, The. The motion was moved, argued and taken under advisement. Order to follow.(BH) Modified text on 2/13/2026 (kt). (Entered: 02/12/2026)
158	Feb 12, 2026	TRANSCRIPT REQUEST for a 30-Day Transcript of 157 Motion Hearing,,, to Court Reporter Renee Rogge. (Asp, David) (Entered: 02/12/2026)
159	Feb 12, 2026	TRANSCRIPT REQUEST for an Expedited 3-Day Transcript of 157 Motion Hearing,,, to Court Reporter Renee Rogge. (Audley, Samuel) (Entered: 02/12/2026)
160	Feb 20, 2026	TRANSCRIPT of Motions Hearing held on 2/11/2026 before Magistrate Judge Shannon G. Elkins. (79 pages). Court Reporter: Renee Rogge. For a copy of the transcript, please file a Transcript Request under Other Filings/Other Documents.Parties have 21 days to file a Statement of Redaction. In accordance with Judicial Conference policy and Local Rule 80.1, the transcript may be released and made remotely electronically available to the public in 90 days. For further information on redaction procedures, please review Local Rule 5.5 and Case Information

Entry #	Filing Date	Description
		>Transcripts, Court Reporters and Digital Audio Recordings. Statement of Redaction due 3/13/2026. Redacted Transcript Deadline set for 3/23/2026. Release of Transcript Restriction set for 5/21/2026. (RAR) (Entered: 02/20/2026)
161	Feb 25, 2026	JOINT MOTION REGARDING CONTINUED SEALING re 155 Exhibit B filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Grant, Michelle) (Entered: 02/25/2026)
162	Mar 9, 2026	ORDER granting in part and denying in part 143 Motion to Compel (Written Opinion). Signed by Magistrate Judge Shannon G. Elkins on 3/9/2026. (CMP) (Entered: 03/09/2026)
163	Mar 30, 2026	MOTION for Extension of Time filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Bjorklund, Shannon) (Entered: 03/30/2026)
164	Mar 30, 2026	MEMORANDUM in Support re 163 MOTION for Extension of Time filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Bjorklund, Shannon) (Entered: 03/30/2026)
165	Mar 30, 2026	Declaration of Michell S. Grant in Support of 163 MOTION for Extension of Time filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 03/30/2026)
166	Mar 30, 2026	PROPOSED ORDER TO JUDGE re 163 MOTION for Extension of Time filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 03/30/2026)
167	Mar 31, 2026	(Text-Only) ORDER granting 163 Motion for Extension of Time. Defendants' Motion for Extension of Time 163 is GRANTED. Defendants shall continue to respond to the Court's order 162 and complete compliance no later than April 29, 2026. Ordered by Magistrate Judge Shannon G. Elkins on 3/31/2026. (CMP) (Entered: 03/31/2026)
168	Apr 29, 2026	MOTION for Extension of Time (Unopposed) filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Bjorklund, Shannon) (Entered: 04/29/2026)
169	Apr 29, 2026	MEMORANDUM in Support re 168 MOTION for Extension of Time (Unopposed) filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc.. (Attachments: # 1 LR7.1/LR72.2 Word Count Compliance Certificate)(Bjorklund, Shannon) (Entered: 04/29/2026)
170	Apr 29, 2026	PROPOSED ORDER TO JUDGE re 168 MOTION for Extension of Time (Unopposed) filed by UnitedHealth Group, Inc., UnitedHealthcare, Inc., naviHealth, Inc..(Bjorklund, Shannon) (Entered: 04/29/2026)
171	Apr 30, 2026	(Text-Only) MINUTE ENTRY for proceedings held before Magistrate Judge Shannon G. Elkins on 4/30/2026: Status Conference.No Digital RecordingMinneapolis Courthouse, Courtroom Telephone ConferenceTime Start: 2:00 p.m.Time Finish: 2:16 p.m.Total Time: 16 minutesAPPEARANCES:For Plaintiffs: David Asp; Simeon Morbey; Emma Ritter Gordon; Michael BoelterFor Defendants: Nicholas Pappas; Michelle GrantPROCEEDINGS: Discussion of pretrial deadlines, the unopposed pending motion, and settlement. The Court encouraged the parties to work diligently and to consider possibilities for resolving the matter.Status Conference (audio-only) set for August 24, 2026, at 10:00 AM (no courtroom) before Magistrate Judge Shannon G. Elkins. Dial-in instructions will be sent to counsel before the conference.(CMP)

Entry #	Filing Date	Description
		(Entered: 04/30/2026)
172	May 4, 2026	ORDER granting 168 Motion for Extension of Time. Signed by Magistrate Judge Shannon G. Elkins on 5/4/2026. (CMP) (Entered: 05/04/2026)